

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3460

By: Wilk

AS INTRODUCED

An Act relating to the Capitol Patrol; amending 47 O.S. 2021, Section 2-105, as amended by Section 1, Chapter 301, O.S.L. 2022 (47 O.S. Supp. 2025, Section 2-105), which relates to the Oklahoma Highway Patrol Division; removing the Capitol Patrol Section; amending 73 O.S. 2021, Section 173, as amended by Section 2, Chapter 429, O.S.L. 2024 (73 O.S. Supp. 2025, Section 173), which relates to Oklahoma Capitol Improvement Authority grounds; establishing a Capitol Patrol Division within the Oklahoma National Guard; granting enforcement powers for the Oklahoma National Guard Capitol Patrol Division; repealing 47 O.S. 2021, Section 11-1009, which relates to parking on certain state property; repealing 47 O.S. 2021, Section 2-105.7, which relates to the Capitol Patrol Division; creating the Oklahoma National Guard Patrol Division; requiring Office of Management and Enterprise Services to provide office space; describing duties; providing for enforcement mechanisms; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 2-105, as amended by Section 1, Chapter 301, O.S.L. 2022 (47 O.S. Supp. 2025, Section 2-105), is amended to read as follows:

1 Section 2-105. A. The Commissioner of Public Safety, subject
2 to the Oklahoma Personnel Act, shall appoint:

3 1. A Chief of the Oklahoma Highway Patrol Division with the
4 rank of Colonel, Deputy Chiefs of the Oklahoma Highway Patrol
5 Division with the rank of Lieutenant Colonel, and subordinate
6 officers and employees of the Oklahoma Highway Patrol Division,
7 including Majors, Captains, Lieutenants, and Highway Patrolmen with
8 the rank of Trooper, who shall comprise the Oklahoma Highway Patrol
9 Division of the Department of Public Safety; ~~provided.~~ Provided,
10 any officer appointed to a commissioned position prescribed in this
11 paragraph which is unclassified pursuant to Section 840-5.5 of Title
12 74 of the Oklahoma Statutes shall have a right of return to the
13 highest previously held classified commissioned position within the
14 Oklahoma Highway Patrol Division of the Department of Public Safety
15 without any loss of rights, privileges or benefits immediately upon
16 completion of the duties in the unclassified commissioned position;

17 2. A Captain, Lieutenants, and Patrolmen who shall comprise the
18 Marine Enforcement Section of the Oklahoma Highway Patrol Division
19 of the Department of Public Safety; and

20 3. ~~A Captain, Lieutenants, and Patrolmen, who shall comprise~~
21 ~~the Capitol Patrol Section of the Oklahoma Highway Patrol Division~~
22 ~~of the Department of Public Safety; and~~

23 4. ~~Communications Coordinators, Communications Superintendents,~~
24 ~~Communications Supervisors, Communications Dispatchers, Radio~~

1 Technicians and Tower Maintenance Officers who shall comprise the
2 Communications Division of the Department of Public Safety.

3 B. No person shall be appointed to any position set out in
4 subsection A of this section unless the person is a citizen of the
5 United States and of good moral character. The Commissioner shall
6 determine minimum qualifications for all positions set out in
7 subsection A of this section, provided such qualifications shall
8 include, but are not limited to, the following:

9 1. For commissioned officer positions:

- 10 a. appointees shall be selected only after examination to
11 determine physical and mental fitness for such
12 positions. The examination criteria shall be
13 prescribed by the Commissioner,
- 14 b. appointees shall be at least twenty-one (21) years of
15 age but less than forty-six (46) years of age,
- 16 c. prior to receiving a commission, all such appointees
17 shall satisfactorily complete a course of training in
18 operations and procedures as prescribed by the
19 Commissioner, and
- 20 d. prior to receiving a commission, all such appointees
21 shall possess an associate's degree or a minimum of
22 sixty-two (62) successfully completed semester hours
23 from an accredited college or university as denoted in
24 the Database of Accredited Postsecondary Institutions

1 and Programs provided by the U.S. Department of
2 Education and whose hours are transferable between
3 such recognized institutions. Prior years of military
4 or law enforcement service shall qualify as a
5 substitute for the educational requirement, up to a
6 maximum of thirty (30) semester hours, for any
7 combination of the following:

8 (1) ten (10) semester hours for each year of
9 honorable service in any active military or
10 reserve military service,

11 (2) ten (10) semester hours for each year the
12 appointee worked as a paid, full-time, CLEET-
13 certified law enforcement officer of a law
14 enforcement agency within the State of Oklahoma,
15 or

16 (3) ten (10) semester hours for each year the
17 appointee worked as a paid, full-time sworn law
18 enforcement officer certified by a state peace
19 officer standards and training agency as a peace
20 officer in another state, or any officer who has
21 been certified as a federal peace officer by a
22 CLEET-recognized law enforcement agency; and

23 2. Any person appointed to a position in the Communications
24 Division shall be at least eighteen (18) years of age and shall

1 possess a high school diploma or General Educational Development
2 equivalency certificate.

3 C. 1. Upon initial appointment to the position of Cadet
4 Highway Patrolman or Probationary Communications Dispatcher, the
5 appointed employee shall be required to serve an initial
6 probationary period of twelve (12) months. The Commissioner may
7 extend the probationary period for up to three (3) additional months
8 provided that the employee and the Office of Management and
9 Enterprise Services are notified in writing as to such action and
10 the reasons thereof. During such probationary period, the employee
11 may be terminated at any time and for any reason at the discretion
12 of the Commissioner. Retention in the service after expiration of
13 the initial probationary period shall entitle such employee to be
14 classified as a permanent employee and the employee shall be so
15 classified. No permanent employee may be discharged or removed
16 except as provided for in this section.

17 2. A commissioned officer of the Oklahoma Highway Patrol
18 Division may be promoted during the initial probationary period if
19 such officer satisfactorily completes all training requirements
20 prescribed by the Commissioner.

21 D. 1. No commissioned officer of the Department shall be a
22 candidate for any political office or take part in or contribute any
23 money or other thing of value, directly or indirectly, to any
24 political campaign or to any candidate for public office. Anyone

1 convicted of violating the provisions of this paragraph shall be
2 guilty of a misdemeanor and shall be punished as provided by law.

3 2. No commissioned officer of the Department, while in the
4 performance of the officer's assigned duty of providing security and
5 protection, shall be considered as participating in a political
6 campaign. The provisions of this paragraph shall not be construed
7 to preclude a commissioned officer of the Oklahoma Highway Patrol
8 Division of the Department of Public Safety from being a candidate
9 for a position on a local board of education.

10 3. The Commissioner or any employee of the Department shall not
11 be a candidate for any political office, or in any way be active or
12 participate in any political contest of any Primary, General, or
13 Special Election, except to cast a ballot.

14 E. Drunkenness or being under the influence of intoxicating
15 substances shall be sufficient grounds for the removal of any
16 commissioned officer of the Department, as provided for in this
17 section.

18 F. 1. No permanent employee, as provided for in this section,
19 who is a commissioned officer of the Department, may be suspended
20 without pay or dismissed unless the employee has been notified in
21 writing by the Commissioner of such intended action and the reasons
22 thereof. No such notice shall be given by the Commissioner unless
23 sworn charges or statements have been obtained to justify the
24 action.

1 2. Whenever such charges are preferred, the Commissioner may
2 suspend the accused pending the hearing and final determination of
3 such charges. If the charges are not sustained in whole or in part,
4 the accused shall be entitled to pay during the period of such
5 suspension. If the charges are sustained in whole or in part, the
6 accused shall not receive any pay for the period of such suspension.

7 3. Commissioned officers of the Department of Public Safety are
8 not entitled to appeal intra-agency transfer to the Oklahoma Merit
9 Protection Commission pursuant to the Oklahoma Personnel Act unless
10 the transfer is in violation of Section 840-2.5 or 840-2.9 of Title
11 74 of the Oklahoma Statutes.

12 4. The Department of Public Safety shall follow the uniform
13 grievance procedure established and adopted by the Office of
14 Management and Enterprise Services for permanent classified
15 employees, except for those employees who are commissioned officers
16 of the Department. The Department of Public Safety shall establish
17 and adopt a proprietary grievance procedure for commissioned
18 officers of the Department which is otherwise in compliance with the
19 provisions of Section 840-6.2 of Title 74 of the Oklahoma Statutes.

20 G. 1. The Commissioner is hereby authorized to purchase and
21 issue uniforms and necessary equipment for all commissioned officers
22 of the Oklahoma Highway Patrol Division of the Department. All
23 uniforms and equipment shall be used only in the performance of the
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1 official duties of such officers and shall remain the property of
2 the Department, except as provided in Section 2-150 of this title.

3 2. Each commissioned officer of the Highway Patrol Division of
4 the Department of Public Safety shall be entitled to reimbursement
5 of expenses pursuant to the State Travel Reimbursement Act while
6 away from the assigned area of the officer as designated by the
7 Chief of the Oklahoma Highway Patrol Division, when such expense is
8 incurred in the service of the state.

9 H. 1. The positions with the rank of Colonel and Lieutenant
10 Colonel of the Oklahoma Highway Patrol Division shall be filled from
11 the body of commissioned officers of the Oklahoma Highway Patrol
12 Division and appointment to said positions shall be based on
13 qualifications, previous record as a commissioned officer of the
14 Oklahoma Highway Patrol Division, length of service, years of
15 experience within the Oklahoma Highway Patrol Division or other
16 service as prescribed in this subsection, and efficiency of service
17 performed.

18 2. In addition to the requirements of paragraph 1 of this
19 subsection, the position of Chief of the Oklahoma Highway Patrol
20 Division shall be based on one of the following:

- 21 a. one (1) year of experience in any combination:
- 22 (1) as Commissioner of Public Safety,
 - 23 (2) as Assistant Commissioner of Public Safety, or
 - 24 (3) as Assistant Chief,

1 b. two (2) years of experience in any combination:

2 (1) as Deputy Chief or higher rank, or

3 (2) if the experience was prior to April 21, 2006, as
4 Major or higher rank,

5 c. four (4) years of experience in any combination:

6 (1) as Major or higher rank, or

7 (2) if the experience was prior to April 21, 2006, as
8 Captain or higher rank, or

9 d. six (6) years of experience in any combination:

10 (1) as Captain or higher rank, or

11 (2) if the experience was prior to April 21, 2006, as
12 First Lieutenant or higher rank.

13 3. In addition to the requirements of paragraph 1 of this
14 subsection, the position of Deputy Chief of the Oklahoma Highway
15 Patrol Division shall be based on one of the following:

16 a. one (1) year of experience in any combination:

17 (1) as Commissioner of Public Safety,

18 (2) as Assistant Commissioner of Public Safety, or

19 (3) as Colonel,

20 b. two (2) years of experience in any combination:

21 (1) as Major or higher rank, or

22 (2) if the experience was prior to April 21, 2006, as
23 Captain or higher rank, or

24 c. four (4) years of experience in any combination:

1 (1) as Captain or higher rank, or

2 (2) if the experience was prior to April 21, 2006, as
3 Highway Patrol First Lieutenant or higher rank.

4 I. The Commissioner of Public Safety is hereby authorized to
5 send employees of the Department of Public Safety to schools such as
6 Northwestern University Center for Public Safety, Southern Police
7 Institute, the FBI National Academy, the Institute of Police
8 Technology and Management, or to any other schools of similar
9 training which would be conducive to improving the efficiency of the
10 Oklahoma Highway Patrol Division and the Department of Public
11 Safety. While an employee is attending a school, the Commissioner
12 is authorized to permit the employee to use a state-owned vehicle
13 and to use a fuel-purchasing card for any expenses related to the
14 operation of the vehicle. In addition, while an employee is
15 attending the FBI National Academy, a one-time expense allowance of
16 Two Thousand Dollars (\$2,000.00) for uniforms, fees, travel, room
17 and board, and other related expenses shall be paid to the employee
18 by the Department; provided, the employee shall not be further
19 compensated through the State Travel Reimbursement Act, and, if any
20 other agency reimburses the employee for any expenses, the
21 reimbursement shall be given to the Department. All purchases made
22 by the employee with the expense allowance shall be considered
23 property of the employee.

J. 1. Any former commissioned officer of the Department whose separation from the Department was at such officer's own request and not a result of such officer's own actions contrary to the policy of the Department or was not as a result of the retirement of that officer from the Department may make application for reinstatement as a commissioned officer of the division or section of the Department in which such officer was previously employed, provided such reinstated officer will be able to complete twenty (20) years of credited service by the time the reinstated officer reaches sixty-two (62) years of age. The Commissioner may waive the requirements of possessing the number of semester hours or degree as required in subsection B of this section for any former commissioned officer making application for reinstatement as a commissioned officer of the Department. The Commissioner may require the applicant for reinstatement to attend selected courses of instruction, as prescribed by the Commissioner.

2. In the event of future hostilities wherein the Congress of the United States declares this nation in a state of war with a foreign nation, including military service brought about by the Vietnam War, any period of military service served by a commissioned officer of the Department shall be considered as continued service with such Department, provided such commissioned officer returns to duty with the Department within sixty (60) days after release from military service.

1 SECTION 2. AMENDATORY 73 O.S. 2021, Section 173, as
2 amended by Section 2, Chapter 429, O.S.L. 2024 (73 O.S. Supp. 2025,
3 Section 173), is amended to read as follows:

4 Section 173. A. The Oklahoma Capitol Improvement Authority may
5 contract with the Office of Management and Enterprise Services to
6 maintain grounds and for housekeeping, maintenance and repair of
7 properties under the jurisdiction of the Authority.

8 B. The Oklahoma Capitol Improvement Authority and the Office of
9 Management and Enterprise Services shall contract with the
10 ~~Department of Public Safety~~ Oklahoma National Guard Capitol Patrol
11 Division for security and law enforcement services in all facilities
12 under the jurisdiction of the Authority or Department within the
13 State Capitol Park in Oklahoma City.

14 C. The Oklahoma Capitol Improvement Authority shall provide
15 office and operations space for Office of Management and Enterprise
16 Services functions.

17 D. The Office of Management and Enterprise Services shall
18 establish accounts for the Office of Management and Enterprise
19 Services, by building or other improvement, as the Director of the
20 Office of Management and Enterprise Services considers necessary to
21 properly account and identify receipts and expenditures related to
22 construction, repair, maintenance, insurance and other operating
23 expenses of buildings and improvements owned, used or occupied by or
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1 on behalf of the Oklahoma Capitol Improvement Authority, where the
2 services are carried out by contract with the Authority.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 21.2 of Title 44, unless there
5 is created a duplication in numbering, reads as follows:

6 A. There is hereby created within the Oklahoma National Guard
7 an Oklahoma National Guard Capitol Patrol Division which shall
8 consist of such patrolmen and employees as may be necessary to
9 provide law enforcement services to all state buildings and
10 properties, including grounds appurtenant thereto, within Oklahoma
11 County and Tulsa County. All patrolmen of the Oklahoma National
12 Guard Capitol Patrol Division shall have the authority to enforce
13 all parking, traffic, and criminal laws within all state buildings
14 and properties, including grounds appurtenant thereto, within
15 Oklahoma County and Tulsa County.

16 B. All patrolmen of the Oklahoma National Guard Capitol Patrol
17 Division shall have, in addition to their primary duty as prescribed
18 in subsection A of this section, a secondary duty to enforce all
19 state statutes, to make arrests for violations, and to perform other
20 duties as prescribed by the Adjutant General to ensure the safety
21 and security for all state buildings and property.

22 C. The Office of Management and Enterprise Services and the
23 Oklahoma Capitol Improvement Authority shall provide office and
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1 operations space for the Oklahoma National Guard Capitol Patrol
2 Division.

3 D. The annual salaries of personnel comprising Oklahoma
4 National Guard Capitol Patrol Division shall be in accordance and
5 conformity with the findings for Department of Public Safety law
6 enforcement personnel of the State of Oklahoma Total Remuneration
7 Study of 2013.

8 SECTION 4. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 21.3 of Title 44, unless there
10 is created a duplication in numbering, reads as follows:

11 A. No person shall place, stop, park, or stand any vehicle,
12 including trailers or implements of husbandry, contrary to any
13 official sign reserving, restricting, or regulating the placing,
14 stopping, standing, or parking of a vehicle at any state building or
15 property, including grounds appurtenant thereto, within Oklahoma
16 County and Tulsa County.

17 B. The Oklahoma National Guard Capitol Patrol Division shall be
18 responsible for the enforcement of subsection A of this section.

19 C. A violation of subsection A of this section shall be
20 indicated by the placing of a notice of such violation on the
21 windshield of the vehicle improperly placed, stopped, parked, or
22 standing. The notice shall be on a form prescribed by the Adjutant
23 General.

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1 D. Any person violating the provisions of subsection A of this
2 section shall be subject to a civil fine in the amount of Five
3 Dollars (\$5.00) if paid within ten (10) days from the date of the
4 violation and Twenty Dollars (\$20.00) if paid after ten (10) days
5 from the date of the violation. The civil fine shall be paid by
6 mailing or personally delivering the notice and a personal check or
7 money order in the amount of the civil fine to the Oklahoma National
8 Guard Capitol Patrol Division office.

9 E. Should the person elect to object to the imposition of the
10 civil fine and have a hearing on the violation, the person shall so
11 indicate on the notice and mail or present it to the Oklahoma State
12 Guard Capitol Patrol Division office within ten (10) days from the
13 date of the notice of the violation, with a bond by cash or money
14 order equal to the amount of the civil fine pending the outcome of
15 the hearing. The bond may be used to pay the civil fine in the
16 event the determination of the hearing examiner upholds the
17 imposition of the civil fine.

18 If no bond accompanies the request for hearing, no hearing shall
19 be granted. If the request for a hearing is not made within ten
20 (10) days from the date of the notice of the violation, the person
21 shall not be entitled to a hearing and shall be subject to the civil
22 fine prescribed in subsection D of this section.

23 F. The request for a hearing shall be submitted to the Oklahoma
24 National Guard Capitol Patrol Division within ten (10) days from the

1 date of the notice of the violation, and the violation shall be set
2 for hearing before a hearing examiner appointed by the Adjutant
3 General. The person requesting the hearing shall be notified of the
4 time and place of the hearing by the Oklahoma National Guard Capitol
5 Patrol Division by mailing a copy of the notice by regular mail to
6 the address indicated on the request for hearing. The hearing
7 examiner may take evidence of the violation and shall determine if
8 there was a violation of the provisions of subsection A of this
9 section. If it is determined that there was a violation, the
10 hearing examiner shall enforce the civil fine indicated on the
11 notice.

12 G. Any vehicle having outstanding civil fines against it may be
13 immobilized by use of a tire boot or may be impounded by the
14 Oklahoma National Guard Capitol Patrol Division. The vehicle may
15 remain immobilized or be retained by the Department of Public Safety
16 pending the payment of all civil fines, towing and storage charges,
17 and until the owner furnishes to the Division proof of security or
18 an affidavit that the vehicle is insured by a policy of liability
19 insurance or will not be used on public highways or public streets,
20 as required pursuant to Section 7-600 et seq. of Title 47 of the
21 Oklahoma Statutes. The State of Oklahoma shall have a possessory
22 lien against any vehicle which is found to have outstanding civil
23 fines against it until such civil fines are paid. The lien may be
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1 foreclosed pursuant to the procedures provided for in Sections 91
2 through 96 of Title 42 of the Oklahoma Statutes.

3 H. All the monies generated from such civil fines shall be
4 remitted to the State Treasurer to be credited to the General
5 Revenue Fund of the State Treasury.

6 SECTION 5. REPEALER 47 O.S. 2021, Section 11-1009, is
7 hereby repealed.

8 SECTION 6. REPEALER 47 O.S. 2021, Section 2-105.7, is
9 hereby repealed.

10 SECTION 7. This act shall become effective November 1, 2026.

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